

ELITE STAR MEDICAL CLINIC

Privacy Policy

Effective Date: April 25, 2026 | Last Update: April 25, 2026

INTRODUCTION

Elite Star Medical Clinic ("we," "us," or "our") is committed to protecting the privacy and confidentiality of all personal information and Protected Health Information (PHI) entrusted to us by our patients, staff, and business associates.

This Privacy Policy describes how we collect, use, store, and disclose information in accordance with:

- HIPAA (Health Insurance Portability and Accountability Act)
- HITECH Act (Health Information Technology for Economic and Clinical Health Act)
- CCPA (California Consumer Privacy Act), where applicable
- Relevant federal and California state privacy laws

By accessing our services or providing us with your information, you acknowledge that you have read, understood, and agreed to the practices described in this Privacy Policy.

INFORMATION WE COLLECT

2.1 Personal Identifying Information (PII)

We may collect the following types of PII:

- Full name, date of birth, Social Security Number (SSN)
- Home address, phone number, and email address
- Emergency contact information
- Insurance details, policy numbers, and billing information

- Employment information when relevant to billing

2.2 Protected Health Information (PHI)

We may collect PHI necessary for treatment and healthcare operations, including:

- Medical history, diagnoses, and treatment records
- Laboratory results, imaging, and test data
- Clinical notes, progress notes, and care plans
- Mental health and substance-use information (protected under additional federal regulations)

2.3 Technical and Administrative Data

We may collect:

- IP addresses and device identifiers for patient-portal use
- Appointment and scheduling records
- System access logs for audit, compliance, and security purposes

3. How We Use Your Information

We use the collected information for:

- Treatment: To diagnose, treat, coordinate patient care, and communicate with other treating providers.
- Payment: To bill insurance, process co-pays, verify coverage, and manage accounts.
- Healthcare Operations: Quality improvement, staff training, accreditation, auditing, and compliance.
- Public Health Reporting: Reporting certain conditions as required by law.

- Legal Compliance: Responding to subpoenas, court orders, and regulatory audits.
- Research: Only with written authorization or when allowed under HIPAA, using properly de-identified data.

4. Disclosure of Information

4.1 Permitted Disclosures (No Authorization Required)

We may share your information without written authorization for:

- Treatment among physicians, specialists, hospitals, and other healthcare providers
- Insurance billing and coverage verification
- Required public-health reporting
- Law-enforcement requests supported by valid court orders or subpoenas
- Business associates performing permitted functions under a signed Business Associate Agreement (BAA)

4.2 Disclosures Requiring Your Authorization

Your written consent is required for:

- Marketing not related to healthcare services
- Sale of your PHI
- Release of psychotherapy notes (with limited HIPAA exceptions)
- Most research activities involving identifiable PHI

4.3 We do not sell your information

We do not sell, rent, or trade PHI or PII to third parties.

5. Your Privacy Rights

You have the following rights under HIPAA and California state law:

Right to Access: Request copies of your medical records in your preferred format.

Right to Amend: Request corrections to inaccurate or incomplete information.

Right to Restrict Disclosures: Request limitations on how we share your PHI, including restricting disclosures to your health plan when you self-pay in full.

Right to an Accounting of Disclosures: Request a list of PHI disclosures made outside treatment, payment, and health-care operations.

Right to Confidential Communications: Request contact at a specific phone number or address.

Right to a Paper Copy: Request a printed copy of this Privacy Policy.

Right to File a Complaint: File a complaint with us or with the U.S. Department of Health and Human Services Office for Civil Rights (OCR).

6. Data Security

We implement administrative, technical, and physical safeguards to protect PHI, including:

- Role-based access controls
- Encryption of ePHI at rest and in transit
- Regular risk assessments and vulnerability scanning
- Annual HIPAA privacy and security training for all staff
- Incident-response and breach-notification procedures compliant with HIPAA

7. Data Retention

We retain medical records in accordance with California law:

- Minimum of 10 years from the date of last service for adults
- For minors: at least 7 years after the patient reaches the age of majority

Administrative records are retained based on regulatory requirements and internal retention schedules.

8. Privacy of Minors

We comply with all federal and California laws governing minor privacy rights.

Certain services, such as reproductive health, mental health, and substance-use treatment, may be accessed by minors without parental notification. In such cases, related medical records are kept confidential from parents or guardians, as required by law.

9. Changes to this Policy

We may update this Privacy Policy at any time. Material revisions will be:

- Posted in the clinic
- Updated on the patient portal
- Provided upon request

The Effective Date indicates the latest revision.

10. Contact Us & How to File a Complaint

Privacy Officer – Elite Star Medical Clinic

Address: 888 Abundance Dr.

Phone: 888-222-5555

Email: privacy@elitestarmed.com

To file a complaint with the U.S. government:

U.S. Department of Health and Human Services

Office for Civil Rights (OCR)

Website: [hhs.gov](https://www.hhs.gov)

Phone: 1-800-368-1019

Authorized By: _____ Date: _____

Chief Executive Officer/ Privacy Officer- Elite Star Medical Clinic

